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Case Number: 25PSCV04133 Hearing Date: July 22, 2026 Dept: 6

CASE NAME: Gegham Aroyan, et al. v. Annette Petrosyan, et al.

1. Claimant Isahak Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability;
2. Claimant Lily Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability; and
3. Claimant Lucy Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Court GRANTS Claimant Isahak Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability without prejudice.

The Court GRANTS Claimant Lily Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability without prejudice.

The Court GRANTS Claimant Lucy Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability without prejudice.

Petitioner is ordered to provide notice of the Court's rulings and file proof of service of same within five calendar days of the Court's order.

BACKGROUND

This is an auto accident case. On November 17, 2025, plaintiffs Gegham Aroyan (Petitioner), Liana Hovhannisyan, Lily Aroyan (Lily), a minor by and through guardian ad litem Gegham Aroyan, Lucy Aroyan (Lucy), a minor by and through guardian ad litem Gegham Aroyan, and Isahak Aroyan (Isahak),[1] a minor by and through guardian ad litem Gegham Aroyan (collectively, Plaintiffs), filed this action against defendants Annette Petrosyan, Tigran Petrosyan (collectively, Defendants) and Does 1 to 50, alleging causes of action for motor vehicle and general negligence.

On May 27, 2026, Petitioner filed petitions for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with disability on behalf of Lily, Lucy, and Isahak.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also Super. Ct. L.A. County, Local Rules, rules 4.115-4.118.)

DISCUSSION – Isahak

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Isahak has agreed to settle this action against Defendants in exchange for \$2,500.00, \$1,575.00 of which will go to Isahak. If approved, \$625.00 will be paid in attorney fees, \$300.00 will be paid for reimbursement of litigation costs advanced by Isahak's attorneys, and \$0.00 will be paid for medical expenses, leaving a balance of \$1,575.00 for Isahak, to be paid or delivered to Isahak's parent, without bond, on the terms and under the conditions specified in Probate Code sections 3401-3402.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Isahak.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Petition, Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$625.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
- (2) The amount of the fee in proportion to the value of the services performed.
- (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.
- (4) The amount involved and the results obtained.
- (5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.
- (6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.
- (7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.
- (8) The time and labor required.
- (9) The informed consent of the representative of the minor or person with a disability to the fee.
- (10) The relative sophistication of the attorney and the representative of the minor or person with a disability.
- (11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.
- (12) Whether the fee is fixed, hourly, or contingent.
- (13) If the fee is contingent:
 - (A) The risk of loss borne by the attorney;
 - (B) The amount of costs advanced by the attorney; and
 - (C) The delay in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Novelty and Difficulty

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Amount Involved and Results Obtained

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Nature and Length of Professional Relationship

Petitioner's counsel indicates having represented Plaintiffs from the date of retention until present. (Petition, Attach. 13a, ¶ 5.)

Experience, Reputation, and Ability of Counsel

Petitioner's counsel indicates having been an attorney since 2006 with an emphasis in personal injury claims. (Petition, Attach. 13a, ¶¶ 2-3.)

Time and Labor Required

Petitioner's counsel indicates having met with Plaintiffs on multiple occasions to discuss facts surrounding the incident, status of the case, and other pertinent issues related to this matter. Petitioner's counsel also indicates opening a liability claim with Defendants' insurance carrier, preparing and presenting a demand package to the carrier, and negotiating a settlement. (Petition, Attach. 13a, ¶ 7.)

Acceptance of Case Precluding Other Employment

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Contingency Fee

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.) However, the agreement provides for a 25% contingency fee.

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that Petitioner's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case

Medical Bills

Isahak has incurred \$0.00 in medical expenses. (Petition, ¶ 12, subd. (a).)

Costs

Petitioner's counsel seeks to recover \$300.00 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Isahak is \$1,575.00. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be paid or delivered to Isahak's parent, without bond, on the terms and under the conditions specified in Probate Code sections 3401-3402. (Petition, ¶ 18, subd. (b)(5).)

Prognosis

Isahak was not injured in the accident. (Petition, ¶ 7.)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Claimant is not required due to Claimant's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Petitioner filed a proposed order for approving the petition (Form MC-351).

Based on the foregoing, the Court GRANTS Isahak's petition for minor's compromise without prejudice.

DISCUSSION – Lily

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Lily has agreed to settle this action against Defendants in exchange for \$2,500.00, \$1,575.00 of which will go to Lily. If approved, \$625.00 will be paid in attorney fees, \$300.00 will be paid for reimbursement of litigation costs advanced by Lily's attorneys, and \$0.00 will be paid for medical expenses, leaving a balance of \$1,575.00 for Lily, to be paid or delivered to Lily's parent, without bond, on the terms and under the conditions specified in Probate Code sections 3401-3402.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Lily.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Petition, Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$625.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
- (2) The amount of the fee in proportion to the value of the services performed.
- (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.
- (4) The amount involved and the results obtained.
- (5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time and labor required.

(9) The informed consent of the representative of the minor or person with a disability to the fee.

(10) The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether the fee is fixed, hourly, or contingent.

(13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced by the attorney; and

(C) The delay in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Novelty and Difficulty

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Amount Involved and Results Obtained

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Nature and Length of Professional Relationship

Petitioner's counsel indicates having represented Plaintiffs from the date of retention until present. (Petition, Attach. 13a, ¶ 5.)

Experience, Reputation, and Ability of Counsel

Petitioner's counsel indicates having been an attorney since 2006 with an emphasis in personal injury claims. (Petition, Attach. 13a, ¶¶ 2-3.)

Time and Labor Required

Petitioner's counsel indicates having met with Plaintiffs on multiple occasions to discuss facts surrounding the incident, status of the case, and other pertinent issues related to this matter. Petitioner's counsel also indicates opening a liability claim with Defendants' insurance carrier, preparing and presenting a demand package to the carrier, and negotiating a settlement. (Petition, Attach. 13a, ¶ 7.)

Acceptance of Case Precluding Other Employment

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Contingency Fee

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.) However, the agreement provides for a 25% contingency fee.

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that Petitioner's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case.

Medical Bills

Lily has incurred \$0.00 in medical expenses. (Petition, ¶ 12, subd. (a).)

Costs

Petitioner's counsel seeks to recover \$300.00 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Lily is \$1,575.00. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be paid or delivered to Lily's parent, without bond, on the terms and under the conditions specified in Probate Code sections 3401-3402. (Petition, ¶ 18, subd. (b)(5).)

Prognosis

Lily was not injured in the accident. (Petition, ¶ 7.)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Claimant is not required due to Claimant's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Petitioner filed a proposed order for approving the petition (Form MC-351).

Based on the foregoing, the Court GRANTS Lily's petition for minor's compromise without prejudice.

DISCUSSION – Lucy

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Lucy has agreed to settle this action against Defendants in exchange for \$2,500.00, \$1,575.00 of which will go to Lucy. If approved, \$625.00 will be paid in attorney fees, \$300.00 will be paid for reimbursement of litigation costs advanced by Lucy's attorneys, and \$0.00 will be paid for medical expenses, leaving a balance of \$1,575.00 for Lucy, to be paid or delivered to Lucy's parent, without bond, on the terms and under the conditions specified in Probate Code sections 3401-3402.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Lucy.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Petition, Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$625.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
- (2) The amount of the fee in proportion to the value of the services performed.
- (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.
- (4) The amount involved and the results obtained.
- (5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.
- (6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.
- (7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.
- (8) The time and labor required.
- (9) The informed consent of the representative of the minor or person with a disability to the fee.
- (10) The relative sophistication of the attorney and the representative of the minor or person with a disability.
- (11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.
- (12) Whether the fee is fixed, hourly, or contingent.
- (13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced by the attorney; and

(C) The delay in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Novelty and Difficulty

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Amount Involved and Results Obtained

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Nature and Length of Professional Relationship

Petitioner's counsel indicates having represented Plaintiffs from the date of retention until present. (Petition, Attach. 13a, ¶ 5.)

Experience, Reputation, and Ability of Counsel

Petitioner's counsel indicates having been an attorney since 2006 with an emphasis in personal injury claims. (Petition, Attach. 13a, ¶¶ 2-3.)

Time and Labor Required

Petitioner's counsel indicates having met with Plaintiffs on multiple occasions to discuss facts surrounding the incident, status of the case, and other pertinent issues related to this matter. Petitioner's counsel also indicates opening a liability claim with Defendants' insurance carrier, preparing and presenting a demand package to the carrier, and negotiating a settlement. (Petition, Attach. 13a, ¶ 7.)

Acceptance of Case Precluding Other Employment

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.)

Contingency Fee

Petitioner's counsel's declaration does not address this factor. (See generally, Petition, Attach. 13a.) However, the agreement provides for a 25% contingency fee.

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that Petitioner's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case.

Medical Bills

Lucy has incurred \$0.00 in medical expenses. (Petition, ¶ 12, subd. (a).)

Costs

Petitioner's counsel seeks to recover \$300.00 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Lucy is \$1,575.00. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be paid or delivered to Lucy's parent, without bond, on the terms and under the conditions specified in Probate Code sections 3401-3402. (Petition, ¶ 18, subd. (b)(5).)

Prognosis

Lucy was not injured in the accident. (Petition, ¶ 7.)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Claimant is not required due to Claimant's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Petitioner filed a proposed order for approving the petition (Form MC-351).

Based on the foregoing, the Court GRANTS Lucy's petition for minor's compromise without prejudice.

CONCLUSION

The Court GRANTS Claimant Isahak Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability without prejudice.

The Court GRANTS Claimant Lily Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability without prejudice.

The Court GRANTS Claimant Lucy Aroyan's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability without prejudice.

Petitioner is ordered to provide notice of the Court's rulings and file proof of service of same within five calendar days of the Court's order.

[1] The Court refers to Lily, Lucy, and Isahak by their first names only to avoid confusion. The Court intends no disrespect.